UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

KATHLEEN MOLLER, **Plaintiff,**	*	
v.	*	**CIVIL ACTION NO. 2:24-cv-228-WBV-DPC**
MARTIAN SALES, INC.; JOPEN, LLC; JOHNSON FOODS, LLC; LP IND., LLC; CAG HOLDINGS, LLC; RMH HOLDINGS, INC.; ABC INSURANCE COMPANY and John Does 1-4, **Defendants.**	*	**THE HONORABLE WENDY B. VITTER** **MAGISTRATE DONNA PHILLIPS CURRAULT**

DEFENDANT JOPEN, LLC'S MOTION TO EXCLUDE PLAINTIFF'S EXPERT RONALD H. WHARTON MD UNDER FED. RULE OF EVID. 702

Pursuant to Federal Rule of Evidence 702, Defendant JOpen, LLC ("JOpen" or "Defendant"), respectfully moves this Honorable Court to exclude Plaintiff's Expert Ronald H. Wharton, MD for the reasons stated in the attached Memorandum in Support of Motion to Exclude Plaintiff's Expert Ronald H. Wharton, MD under Federal Rule of Evidence 702.

Dated this 2nd day of March, 2026.

Respectfully Submitted

By: */s/ Gwendolyn C. Payton*

Gwendolyn C. Payton *(pro hac vice)*
Hayley R. Ambler
Louisiana State Bar No. 25848

KILPATRICK TOWNSEND & STOCKTON LLP
1420 Fifth Ave., Suite 3700
Seattle, Washington 98101
Telephone: (206) 497-9600
Facsimile: (206) 299-0414
Email: hambler@ktslaw.com
Email: gpayton@ktslaw.com

Maeghan E. Whitehead *(*admitted *pro hac vice)*
KILPATRICK TOWNSEND & STOCKTON LLP
2001 Ross Avenue, Suite 4400

Dallas, Texas 75201
(214) 922-7138
(214) 279-4456
mewhitehead@ktslaw.com

COUNSEL FOR DEFENDANTS

CERTIFICATE OF SERVICE

This is to certify that on the 2nd day of March 2026, a copy of the foregoing document was filed with the Clerk of Court and served on all counsel of record via the Court's ECF System.

/s/ Gwendolyn C. Payton
Gwendolyn C. Payton